

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Judith Le	Team: Squad #12	CCRB Case #: 201707046	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 08/26/2017 6:43 AM	Location of Incident: 103rd Avenue and Hollis Avenue and 103rd Precinct stationhouse.	18 Mo. SOL 2/26/2019	Precinct: 103		
Date/Time CV Reported Sun, 08/27/2017 5:25 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 08/27/2017 5:25 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kevin Nicoll	19740	958984	103 PCT
2. POM Christophe Dachille	02871	961718	103 PCT
3. SGT Mark Kosta	01928	949180	103 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Marceda	23202	950819	103 PCT
2. POM Stevie Williamson	14402	952348	103 PCT
3. POM William Hannan	18904	958680	103 PCT
4. SGT James Berk	01311	949358	103 PCT
5. POM Nicholas Krissow	13551	961871	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Kevin Nicoll	Abuse: At 103rd Avenue and Hollis Avenue in Queens, Police Officer Kevin Nicoll stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POM Christophe Dachille	Abuse: At 103rd Avenue and Hollis Avenue in Queens, Police Officer Christopher Dachille stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Exonerated
C . SGT Mark Kosta	Force: At 103rd Avenue and Hollis Avenue in Queens, Sergeant Mark Kosta used physical force against § 87(2)(b)	C . Exonerated
D . POM Kevin Nicoll	Force: At 103rd Avenue and Hollis Avenue in Queens, Police Officer Kevin Nicoll used physical force against § 87(2)(b)	D . Exonerated
E . POM Kevin Nicoll	Off. Language: At the 103rd Precinct stationhouse, Police Officer Kevin Nicoll made remarks to § 87(2)(b) based upon race.	E . Unsubstantiated
F . POM Kevin Nicoll	Abuse: At the 103rd Precinct stationhouse, Police Officer Kevin Nicoll searched the vehicle in which § 87(2)(b) was an occupant.	F . Exonerated

Case Summary

On August 26, 2017 at 6:43 a.m., § 87(2)(b) and § 87(2)(b) were stopped by PO Kevin Nicoll and PO Christopher Dachille of the 103rd Precinct on 103rd Avenue and Hollis Avenue in Queens for tinted windows and failure to signal (**Allegations A and B: Abuse of Authority, exonerated**). § 87(2)(b) who believed he had been wrongfully stopped, refused to provide his identification and asked instead to speak to a supervisor. Approximately fifteen minutes later, Sgt. Mark Kosta and PO Nicholas Krissow of the 103rd Precinct arrived. Sgt. Kosta and PO Nicholl then allegedly pulled § 87(2)(b) out of the vehicle and placed him in handcuffs (**Allegations C and D: Force, exonerated**). § 87(2)(b) was then arrested and taken to the 103rd Precinct stationhouse and brought to Sgt. James Berk at the front desk. § 87(2)(b) was wearing a t-shirt that said, “Blessed Young Niggers.” While removing § 87(2)(b)’s money from his pocket, PO Nicholl allegedly said, “So you’re a blessed young nigger huh? You have money. I guess you’ve been arrested a lot of times too.” (**Allegation E: Offensive Language, unsubstantiated**). § 87(2)(b) then went to retrieve his car, which had allegedly been ransacked (**Allegation F: Abuse of Authority, exonerated**).

There was no video footage capturing this incident.

Findings and Recommendations

Allegation A – Abuse of Authority: At 103rd Avenue and Hollis Avenue in Queens, Police Officer Kevin Nicoll stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B – Abuse of Authority: At 103rd Avenue and Hollis Avenue in Queens, Police Officer Christopher Dachille stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that after leaving a party, § 87(2)(b) was stopped at the intersection of 103rd Avenue and Hollis Avenue in Queens. § 87(2)(g)

§ 87(2)(b) (Board Review #1) stated that he and his friend, § 87(2)(b) had just left a friend’s party, at § 87(2)(b) in Queens, when he noticed a marked police car in front of the building. § 87(2)(b) felt the officers watched him cross the street to his car, a white Nissan with rear-tinted windows. After seeing the police car follow a black vehicle, § 87(2)(b) drove off. A few minutes later, § 87(2)(b) was at a stop sign when he saw the same police car, with its sirens on, behind him. He pulled over on 103rd Avenue and Hollis Avenue. PO Nicoll came up to his window with his partner, PO Dachille, and asked him if he was coming from the party. § 87(2)(b) told PO Nicoll he was heading home, and asked the officers why they were stopping him. PO Nicoll told § 87(2)(b) that his tints were too dark and he had not turned on his indicator light. § 87(2)(b) pointed out that his indicator lights were still on, and that his tints were at 70%, which was legal.

§ 87(2)(b) in a telephone statement (Board Review #2), said that he and § 87(2)(b) had just left a party, where they had not been drinking, when § 87(2)(b) was pulled over for failure to signal and a broken taillight. § 87(2)(b) felt that the officers were targeting them and lying about why they were being stopped because their indicator lights were on and the taillight was not broken. The officers asked § 87(2)(b) once for his license and registration, but he did not provide it. § 87(2)(b) was telling § 87(2)(b) to just give his license and

registration to the officers, but he stated that he did not blame § 87(2)(b) for refusing to comply because there was no reason for the officers to stop them.

§ 87(2)(a) 160.50

Property Clerk Invoice #§ 87(2)(b) (Board Review #20), completed by PO Nicoll, states under the inspection details, exterior condition and interior condition, poor, no missing or damaged parts.

PO Nicoll (Board Review #5) stated that he was operating his vehicle when he observed a white, 4-door sedan fail to signal on 104th Avenue. The vehicle also had excessive tints, was missing a passenger side mirror and had a defective headlight. PO Nicoll decided to conduct a car stop. PO Nicoll followed the vehicle onto Hollis Ave., activated his emergency lights and stopped the car.

PO Dachille (Board Review #6) stated that he was with his partner, PO Nicoll, in their vehicle when PO Nicoll saw a car with tinted windows and its tail light out. PO Nicoll informed PO Dachille that he wanted to pull the car over and issue it a summons. They then pulled the car over. PO Dachille went to the passenger side, while PO Nicoll went to the driver-side and informed § 87(2)(b) that he was being pulled over for a brake light. PO Dachille stood by the passenger side and observed what was going on. He did not speak to anyone in the vehicle, and noted that during this time the passenger stayed in the car.

VTL § 375(12)(b)(1) states that no person shall operate any motor vehicle upon any public highway, road or street where the sidewings or side windows of which on either side forward or adjacent to the operator's seat are composed of, covered by or treated with any material which has light transmittance of less than seventy percent (Board Review #7). VTL § 1163(b) states that no person shall stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal in the manner provided herein to the driver of any vehicle immediately to the rear when there is opportunity to give such signal (Board Review #8).

It is undisputed that PO Nicoll and PO Dachille stopped § 87(2)(b) for a failure to signal, excessively tinted windows, and damaged lights. § 87(2)(a) 160.50

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

§ 87(2)(g)

. It is therefore recommended that **Allegations A and B** be *exonerated*.

Allegation C – Force: At 103rd Avenue and Hollis Avenue in Queens, Sergeant Mark Kosta used physical force against § 87(2)(b)

Allegation D – Force: At 103rd Avenue and Hollis Avenue in Queens, Police Officer Kevin Nicoll used physical force against § 87(2)(b)

It is undisputed that after being stopped, § 87(2)(b) refused to provide PO Nicoll with his identification, and Sgt. Kosta subsequently responded to the scene. § 87(2)(g)

§ 87(2)(b) (Board Review #1) stated that PO Nicoll asked him for his license and registration either one or two times. § 87(2)(b) refused to provide the information and asked PO Nicoll if he could speak with his supervisor. Approximately 15 minutes later, three marked cars showed up. Sgt. Kosta approached § 87(2)(b)'s door and ordered § 87(2)(b) to get out of his car. Sgt. Kosta then opened § 87(2)(b)'s door and grabbed his left arm with one hand, and reached for his seatbelt with the other. § 87(2)(b) released the seatbelt and began stepping out of the car, because he did not want to get hurt, but Sgt. Kosta was still holding on to his arm, and pulling him out. After getting out of the car, three additional officers grabbed § 87(2)(b) and pushed him against the door, where he was subsequently handcuffed. The officers did not explain to § 87(2)(b) why he was being arrested.

§ 87(2)(b) (Board Review #2) noted in his telephone statement, that § 87(2)(b) asked for a supervisor and an officer that § 87(2)(b) thought was a sergeant arrived. The sergeant ordered § 87(2)(b) to get out of the car and he complied. § 87(2)(b) did not see any of the officers forcibly take § 87(2)(b) out of his vehicle. § 87(2)(b) did not see § 87(2)(b) make contact with the car.

PO Nicoll (Board Review #5) stated that approaching the vehicle, he saw § 87(2)(b) and § 87(2)(b). PO Nicoll noted that § 87(2)(b) had bloodshot eyes, and explained to § 87(2)(b) why he was being stopped. He then asked § 87(2)(b) for his license and registration. § 87(2)(b) replied that he did not have to give PO Nicoll anything. PO Nicoll asked § 87(2)(b) two more times for his documents, but § 87(2)(b) continued to refuse and told him he had no reason to stop him. § 87(2)(b) then asked PO Nicoll for his supervisor. PO Nicoll returned to his RMP and contacted Sgt. Kosta and an additional unit. Shortly thereafter, Sgt. Kosta arrived, as well as a backup unit. PO Nicoll then walked back to § 87(2)(b) and asked him one more time to produce his license and registration. § 87(2)(b) refused again, and at that time PO Nicoll decided to remove § 87(2)(b) and place him under arrest for § 87(2)(a) 160.50. PO Nicoll opened the door and asked § 87(2)(b) to exit the vehicle. § 87(2)(b) began to stand and PO Nicoll placed his hand on § 87(2)(b)'s arm. § 87(2)(b) refused to comply, stating that PO Nicoll had no right to do what he was doing. PO Nicoll held § 87(2)(b)'s right arm as he stepped out of the car to prevent § 87(2)(b) from running. PO Nicoll did not recall reaching into the car to manipulate with § 87(2)(b)'s seatbelt, but stated that if § 87(2)(b) was in his seatbelt, he might have reached across and unbelted him for his safety because he did not want § 87(2)(b).

§ 87(2)(b) to reach into his waistband or the center console. During this time, PO Nicoll noticed a strong odor of alcohol emitting from § 87(2)(b)'s breath. He could not remember if he asked him if he had been drinking. Once § 87(2)(b) was taken out of the vehicle, PO Nicoll informed him that he was under arrest. § 87(2)(b) became more compliant, and was handcuffed. PO Nicoll did not recall any other officers making physical contact with § 87(2)(b) or assisting him with handcuffing him.

Sgt. Kosta (Board Review #9) received a call from PO Nicoll on his department cellphone, informing him that he had a car stopped and the driver was refusing to give him any documents, even though he had asked for them multiple times. PO Nicoll asked Sgt. Kosta for guidance. At the time, Sgt. Kosta was on his way to the stationhouse and told PO Nicoll to wait until he got there. When Sgt. Kosta arrived on scene, he saw a vehicle with § 87(2)(b) and § 87(2)(b). PO Nicoll and his partner were standing in front of their RMP and there was another RMP with two other officers. Sgt. Kosta pulled in front of the vehicle with his operator, PO Krissow. After Sgt. Nicoll exited his vehicle, PO Nicoll and his partner approached the driver side and Sgt. Kosta and PO Krissow approached the passenger side of the car. Sgt. Kosta signaled to PO Nicoll that it was time to take the driver out the car by nodding his head. Sgt. Kosta explained that the officers needed to remove the driver because he was refusing to provide any documentation and for the officers' safety, it was important to get him out of the car since they did not know what he was going to do. Sgt. Kosta also added that he had decided that the driver was going to be placed under arrest for refusing to provide any information. Sgt. Kosta also noted that based on the way § 87(2)(b) was acting, the officers assumed he was intoxicated since normal, sober motorists did not refuse to hand over their documents. PO Nicoll removed § 87(2)(b) from the vehicle, while Sgt. Kosta opened the passenger-side door and asked § 87(2)(b) to step out. Upon opening the car door, an odor of alcohol emitted from the car. § 87(2)(b) was compliant, and appeared annoyed at § 87(2)(b) saying to Sgt. Kosta, "I told him just to give over the documents. I don't know why he's doing this." § 87(2)(b) also yelled at § 87(2)(b) "I told you that you should have just given them your stuff!" Sgt. Kosta was largely focused on § 87(2)(b) and only saw § 87(2)(b) after he was taken out of the car and placed in handcuffs. He noted that § 87(2)(b) appeared agitated. Sgt. Kosta did not see how § 87(2)(b) was removed from the car, but noted that there was no struggle or fighting inside of the vehicle. He stated that he never assisted PO Nicoll in removing § 87(2)(b) from the car. Sgt. Kosta later noted that § 87(2)(b) was placed under arrest for a § 87(2)(a) 160.50, after he refused to provide documents.

PO Dachille (Board Review #6) stated that PO Nicoll asked § 87(2)(b) for his license and registration. § 87(2)(b) refused to comply. He appeared very animated and waved his arm and his voice was loud and angry. PO Nicoll again asked § 87(2)(b) for his license and registration, but he again did not comply. PO Nicoll then asked § 87(2)(b) to step out of the car because he refused to provide his license and registration in lieu of arrest. § 87(2)(b) refused to comply. The officers then called Sgt. Kosta and backup. When Sgt. Kosta arrived, he went and spoke to § 87(2)(b). PO Nicoll stood behind Sgt. Kosta, and PO Dachille stood behind his partner. The backup officers stood and observed what was going on. PO Nicoll opened the car door, and PO Nicoll and Sgt. Kosta grabbed § 87(2)(b)'s arms and pulled him out of

his car. They then placed § 87(2)(b) under arrest and took him to the 103rd Precinct stationhouse.

§ 87(2)(b)

P.G. 212-02 states that officers should apply no more than reasonable force necessary to gain control (Board Review #11).

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be *exonerated*.

Allegation E – Offensive Language: At the 103rd Precinct stationhouse, Police Officer Kevin Nicoll made remarks to § 87(2)(b) based upon race.

It is undisputed that after being arrested, § 87(2)(b) was taken to the 103rd Precinct stationhouse for processing. § 87(2)(g)

§ 87(2)(b) (Board Review #1) stated that after he arrived at the stationhouse, he was asked to empty his pockets. The officers were searching his pockets and taking money from his wallet. § 87(2)(b) noted that at the time, he was wearing a t-shirt for his community group that said, “Blessed young niggers.” PO Nicoll asked § 87(2)(b) “So you’re a blessed young nigger, huh? You have money. I guess you’ve been arrested a lot of times, too.” § 87(2)(b) felt that PO Nicoll was using the term “nigger” as a racial slur and implying that a black man should not be blessed.

PO Nicoll (Board Review #5) stated he was standing at the desk with Sgt. Berk. § 87(2)(b) was asked to take everything out of his pockets, and PO Nicoll removed § 87(2)(b)’s wallet and looked inside. PO Nicoll did not make any comment to § 87(2)(b) about the amount of money in his wallet. PO Nicoll recalled § 87(2)(b) wearing a t-shirt that said, “Blessed young niggers,” on it, but PO Nicoll did not make any comment to § 87(2)(b) about his t-shirt or reference previous arrests.

Sgt. Kosta (Board Review #9) noted that the next time he saw PO Nicoll and § 87(2)(b) was when he was behind the desk at the stationhouse with Sgt. Berk. Sgt. Kosta could not remember

what § 87(2)(b) was wearing, and did not hear PO Nicoll ask § 87(2)(b) if he was a, “Blessed young nigger.”

PO Dachille (Board Review #6) stated that he was present at the front-desk when they checked § 87(2)(b)'s pockets. He did not hear PO Nicoll make any reference to § 87(2)(b)'s t-shirt or call him a “nigger.”

Sgt. Berk (Board Review #12) stated he was working at the desk when § 87(2)(b) was brought in by PO Nicoll. Sgt. Berk stated that § 87(2)(b) smelled of alcohol, and showed symptoms of being under the influence, such as odor, slurred speech and had bloodshot eyes. § 87(2)(b) slurred when he said his name. Sgt. Berk put § 87(2)(b)'s pedigree information into the Command Log. He stated that outside of getting § 87(2)(b)'s pedigree information, he did not engage in any conversation with § 87(2)(b). He did not remember what § 87(2)(b) was wearing, and while he did see PO Nicoll remove § 87(2)(b)'s wallet and go through it, he did not hear PO Nicoll say anything about § 87(2)(b) being a, "Blessed young nigger." Sgt. Berk noted that a shirt and a statement like that would have absolutely stuck out in his mind and he would not have tolerated any officer saying anything like that.

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that **Allegation E** be *unsubstantiated*.

Allegation F – Abuse of Authority: At the 103rd Precinct stationhouse, Police Officer Kevin Nicoll searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that after § 87(2)(b) was arrested, his vehicle was taken to the stationhouse and an invoicing inspection was conducted.

§ 87(2)(b) (Board Review #1) stated that he knew the officers searched his car after they took it to the stationhouse because PO Nicholl asked § 87(2)(b) if he played baseball and he had baseball equipment in his vehicle. He later noted that his whole car was trashed.

Property Clerk Invoice #§ 87(2)(b) (Board Review # 20), completed by PO Nicoll, states that on August 26, 2017 at 12:09 a.m., a 2001 Nissan Maxima was vouchered in regards to arrest #§ 87(2)(b) awaiting prisoners pickup. Under the inspection details, exterior condition and interior condition, poor, no missing or damaged parts. The voucher also notes that an invoicing inspection was conducted by PO Nicoll. The trunk and glove compartment were listed as open, but no personal property was removed. On August 28, 2017 at 12:42 a.m., the vehicle was returned to its owner, § 87(2)(b).

PO Nicoll's memo book for August 26, 2017 (Board Review #13) states at 6:43 a.m., under arrest in regards to car stop Hollis Ave. and 103rd Ave., defendant § 87(2)(b)

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date